

The Assam Commissioners (Transfer of Powers) Act, 1947

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State of Assam - Act

The Assam Commissioners (Transfer of Powers) Act, 1947

ASSAM

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The Assam Commissioners (Transfer of Powers) Act, 1947

Act 12 of 1947

Published on 1 October 1947

Commenced on 1 October 1947

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The Assam Commissioners (Transfer of Powers) Act, 1947

(Assam Act

No. 12 of 1947

)

Last Updated 11th February, 2020

Published in the Assam Gazette of 1st October, 1947. For Statement of Objects and Reasons see 'Assam Gazette', Extraordinary, 1947, page 79.

An Act to provide for the transfer to other authorities of the powers and jurisdiction of the Commissioner

Preamble. - Where as it is expedient to provide for the transfer to other authorities of the powers and jurisdiction of the Commissioner ;

It is hereby enacted as follows :

1.

Short title and commencement.

(1)

This Act shall be called the Assam Commissioner's (Transfer of Powers) Act, 1947.

(2)

It shall come into force on such date as the [State]

[Substituted by A.O., 1950 for 'Provincial'.]

Government may, by notification in the Official Gazette, appoint.

2.

Definition.

- In this Act, "the Commissioner" means the Commissioner of Divisions, Assam.

3.

Transfer of the powers and jurisdiction of the Commissioner.

(1)

Notwithstanding anything contained in the Assam Commissioners' Powers Distribution Act, 1939 (Assam Act I of 1939), the [State]

[Substituted by A.O., 1950 for 'Provincial'.]

Government may, by See [notification]

[Notification No. RL 12/46/32, dated 1st December, 1950.]

in the official Gazette, transfer any or all of the powers exercised in any matter whatsoever by the Commissioners immediately before the commencement of this Act, and any jurisdiction vested in the Commissioner as aforesaid, to such other authority or authorities as may be specified.

(2)

Every authority, to whom any power or jurisdiction is transferred under the provisions of sub-section (1), shall be deemed to be enabled to exercise the same power or to be vested with the same jurisdiction, in respect of the particular matter, as was exercised by, or vested in, the Commissioner.

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